

MEMORANDUM

Subj: SOLE SOURCE JUSTIFICATION TO PROCURE LABVIEW SUBSCRIPTION THROUGH THE ENTERPRISE AGREEMENT PROGRAM

1. Identification of the agency and the contracting activity, and specific identification of the document as a “Sole Source Justification.”

This is a sole source justification. Contracting activity is NSWC-PCD, Code 024, 110 Vernon Ave., Panama City, FL, 32407.

2. Nature and/or description of the action being approved.

This action will award a firm fixed price contract to National Instruments (NI) subscription listed in Paragraph 3.

3. A description of the supplies or services required to meet the agency’s needs.

Part #	Description	Qty.
BD453409	Enterprise Agreement Program Initial Period: MAY 1, 2026 – APR 30, 2027 Contact Customer Service for Availability	1
Option Year 1		
BD453409	Enterprise Agreement Program Option Period 1: MAY 1, 2027 – APR 30, 2028 Contact Customer Service for Availability	1
Option Year 2		
BD453409	Enterprise Agreement Program Option Period 2: MAY 1, 2028 – APR 30, 2029 Contact Customer Service for Availability	1

This acquisition will be conducted using simplified acquisition procedures with a total estimated value greater than \$25,000. The Government’s minimum needs have been verified by the certifying technical and requirements personnel. This memo does not authorize acquisition for other requirements. This acquisition will be conducted using simplified acquisition procedures with a total dollar value above micro-purchase levels, but not exceeding the simplified acquisition threshold of \$250,000.00.

4. Identification of the justification rationale and, if applicable, a demonstration of the proposed contractor's unique qualifications to provide the required supply or service.
10 U.S.C. 2304(c)(1). Application for sole source description FAR 6.302-1(c).

The Naval Surface Warfare Center Panama City Division (NSWC-PCD) currently uses LabVIEW software to perform data acquisition of various systems in support of time sensitive measurements. The software is required to communicate with National Instruments data acquisition equipment that the government currently owns. If another brand of software were selected, it may not integrate with the existing equipment, thus introducing risk to multiple project schedules and success.

Additionally, the services provided in the Volume Licensing Agreement contain elements that will not be honored if not directly contracted through NI. Sub-contractors will not be able to provide the same services that are being funded, including rapid service on all issues, consistent access to upgraded versions of LabVIEW software, training credits, software add-on access, and other critical services that require a direct relationship with National Instruments.

As such, the Government does not expect significant savings through competition and does expect significant and unacceptable delays that will negatively impact this requirement. Therefore, it is in the Governments' best interest to acquire the NI LabVIEW brand.

5. A determination by the ordering activity contracting officer that the order represents the best value consistent with FAR 13.106-1(b).

The Contracting Officer has determined that the order represents the best value and results in the lowest overall cost alternative (such as considering price, special features, administrative costs) to meet the Government's needs.

6. A description of the market research conducted among schedule holders and the results or a statement of the reason market research was not conducted.

For the reasons specified in paragraph 4 above, NI LabVIEW is the only source that can meet the Government's needs. This requirement will be synopsisized in the government point of entry sam.gov because it is estimated greater than \$25,000.00.

7. Any other facts supporting the justification.

None.

8. A statement of the actions, if any, the agency may take to remove or overcome any barriers that led to the restricted consideration before any subsequent acquisition for the supplies or services is made.

As stated in paragraph 4 above, NI LabVIEW is the only source that can meet this requirement.